

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 8, 2014

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Shanor moved to approve, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on August 25, 2014. Motion (per Consent Agenda) carried.

Mr. Brown and Mr. Shanor each declared a conflict of interest (business interest in vouchers payable to Ameri-Tech HVAC Services and First Judicial District Attorney's Office respectively) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown and Mr. Shanor returned to Council Chambers.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Unified Development Code, changing the zoning classification from County MR Medium Density Residential to MR-2 Medium Density Residential - Developing for the West 178' of the North 102' of Tract 324, Tract A (West 120' of the North 102' of Tract 323 and all of the North 102' of Tract 324 except the West 178') and Tract B (all of the North 102' of Tract 323 except the West 120'), Sunnyside Addition, 7th Filing, Cheyenne, Wyoming, to be known as Diamond Estates, 5th Filing (Replat in process) (located at the southeast corner of the intersection of Rock Springs Street and Pierce Avenue). Reporting for Public Services Committee, Mr. Shanor moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body. (#4040)

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, portions of tracts 245, 246, 247 and 248, Sunnyside Addition, 6th Filing, Laramie County, Wyoming (located at the northwest corner of the intersection of Hayes Avenue and US Highway 30). Mr. Shanor moved to approve on third and final reading, seconded by Ms. Williams. Motion carried. Voting "yes" -- all members of the governing body. (#4041)

ORDINANCE - Vacating a portion of Alexander Avenue and 13th Street, adjacent to Blocks 444, 445, 452 and 453, Original City, Cheyenne, Wyoming (located south of E. Lincolnway, west of Dunn Avenue) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendments, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MR-1 Medium Density Residential-Established to MUB Mixed-Use Business Emphasis for Lots 7 and 8, Block 509, Original City, Cheyenne, Wyoming (located at the northwest corner of the intersection of W. 10th Street and Bent Avenue) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Diamond Estates, 5th Filing, a replat of the West 178' of the North 102' of Tract 324, Tract A (West 120' of the North 102' of Tract 323 and all of the North 102' of Tract 324 except the West 178') and Tract B (all of the North 102' of Tract 323 except the West 120'), Sunnyside Addition, 7th Filing, Cheyenne, Wyoming (located at the southeast corner of the intersection of Rock Springs Street and Pierce Avenue). Motion (per Consent Agenda) carried. (#5615)

[CA] RESOLUTION - Approving Outside User Water Sewer Services, by User's Agreement, with the Microsoft Corporation, Lot 3, Block 1, North Range Business Park, 5th Filing, Laramie County, Wyoming. Motion (per Consent Agenda) carried. (#5616)

RESOLUTION - Adopting the West Edge Visionary Blueprint as a working document and guide to the community's goals of managing stormwater in the Lower Capitol Basin, mitigating brownfields, creating meaningful public spaces, and facilitating private investment in the near west side of downtown Cheyenne. Mr. Shanor moved to adopt, seconded by Ms. Williams. Mr. Shanor moved to amend by including staff adjustments as indicated on page 2 of the staff summary report involving the following, seconded by Ms. Broyles: Executive Summary (page 6); 4.5.4 Investment Supportive Environment; 4.4.1 Urban Renewal Authority; 4.5.8 (New Strategy) Historic Preservation, and 4.7.1 District Plan. Upon inquiry, Mayor Kaysen confirmed use of sales tax funds toward the project will be pursuant to the 1% Specific Purpose Sales and Use Tax ballot question approved by voters. Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion as amended carried. Voting "yes" -- all members of the governing body. (#5617)

RESOLUTION - Building Cheyenne's future by reaffirming the City of Cheyenne's commitment to ethical principles and efficiency in government. Sara Vasquez, President, Cheyenne Public Employees Association (CPEA), commented in opposition to the resolution, noting that ethics principles are already in place for City employees. Reporting for Committee of the Whole, Dr. Rinne moved to adopt, seconded by Ms. Williams. Dr. Rinne moved to postpone for two weeks (to Sept. 22, 2014), seconded by Mr. Shanor. Discussion included comments in support as well as non-support of postponement; lack of City Attorney's approval stamp on the document; existing ethics code for employees, and City Personnel Rules and Regulations, pending revisions and approval procedure pursuant to the Wyoming Administrative Procedure Act (WAPA). During comments, Dr. Rinne raised a point of order that comments were not germane to the motion on the floor with Mayor Kaysen concurring that discussion should pertain to the motion to postpone. Upon inquiry, Mayor

Kaysen advised if the motion was approved the item would go back to Committee of the Whole for further review and recommendation and then return to the governing body for action, and confirmed that the rules and regulations are in the process of being revised and approval of revisions by the governing body is not required under the WAPA. Motion to postpone failed (due to a tie vote). Voting "yes" -- Mr. Allen, Mr. Luna, Mr. Shanor, Mr. Valdez and Ms. Williams. Voting "no" -- Mr. Brown, Ms. Broyles, Mr. Cook, Dr. Rinne and Mayor Kaysen. Discussion on the main motion followed and included the following topics: Current Code of Ethics; intent of the resolution; proposed revisions to the Personnel Rules and Regulations, and awareness of problems the City of Casper is currently experiencing. Upon inquiry, Mayor Kaysen clarified revisions to the 2008 rules and regulations edition involve compliance areas with federal, state and local laws; verified the City's Risk Safety Manual was not in the process of being updated, and explained the current administrative complaint process that may be utilized by the public. Upon query to City Council members by Mayor Kaysen and there being no objection raised, Mayor Kaysen provided additional information regarding content contained in the rules and regulations with regard to retaliatory behavior and disciplinary steps, and state statute provisions on ethics and standards. Following further discussion, motion to adopt failed (due to a tie vote). Voting "yes" -- Mr. Allen, Mr. Luna, Mr. Shanor, Mr. Valdez and Ms. Williams. Voting "no"-- Mr. Brown, Ms. Broyles, Mr. Cook, Dr. Rinne and Mayor Kaysen.

RESOLUTION - To increase economic development by reorganizing the Planning and Development Offices as independent entities. Speaking in support of the resolution were: Joe Patterson, Patterson Construction and President, Southeast Wyoming Home Builders Association; Noel Griffith, local architect; Tammy Grant, President, Cheyenne Realtors Association; Linda Weppner, business owner; Bill Edwards, Edwards Construction; Frank Cole, United Western Corporation; Boyd Wiggam, Wyoming Liberty Group; John Volk, local developer; Jim Weaver, local realtor; John Mason, business owner; Dale Steenbergen, Cheyenne Chamber of Commerce, and Shawn Ajdari, local developer. Topics discussed included the following: Expediting development procedures and workflow; easier and more efficient development processes; designating staff to facilitate and navigate customers through development procedures; separation of offices to provide consistency and accountability; meeting current residential housing needs in a timely manner; suggestion of also separating the Building Safety functions into its own department entity; "one stop shop" concept for customers and meaning of the term; differences between planning and development functions; production performance measures; time involved in staff and other agencies' review process; costs to developers; use of technology and software; small business concerns; Chamber of Commerce members' support (Mr. Steenbergen submitted documentation of members' signatures in favor of the resolution -- on file with City Clerk's office); difference between economic activity vs. development; interested parties involvement in development process and review and streamlining of same, and examples of community business developments and time frames involved in reviewing, inspecting and approving applications. Jan Nelson-Schroll expressed her opinion that communication and participation by residential neighborhoods should occur relative to proposed developments or re-developments affecting their areas. Dr. Rinne moved to adopt, seconded by Mr. Shanor. Mr. Shanor moved to amend by adding the following sentence at the end of Section (5) under the Now, Therefore, Be It Resolved clause, seconded by Ms. Williams: "The Council also hereby recommends that immediately after the adoption of this resolution the Mayor seek input from the Council and interested stakeholders, including but not limited to, the Greater Cheyenne Chamber of Commerce, the Southeast Wyoming Homebuilders Association, and the Cheyenne Board of Realtors, as to how to best effectuate the intent of this resolution." Speaking in favor of the amendment were: Mr. Steenbergen, Mr. Edwards and Ms. Nelson-Schroll. During discussion by governing body members, it was confirmed that intent of the wording in Section (5), current as well

as the proposed amendment, was to also include City staff participation relative to garnering input and attending related meetings, and comments in support as well as non-support of the amendment were made. Motion to amend carried. Voting “yes” -- all members of the governing body with the exception of Mr. Brown voting “no.” Discussion followed on the main motion as amended and included the following topics: Uncertainty whether “splitting” the offices would result in better efficiency; concept of a “one stop shop”; addressing concerns legislatively vs. administratively; positive comments about current planning and development City staff, and comment that wording of the approved amendment may be all that was needed vs. the resolution. During discussion and upon inquiry regarding how City staff and the administration felt about the proposed organizational splitting of the offices, Mayor Kaysen provided information on several administrative operational and procedural changes that have occurred over the past few years as well as those currently being worked upon; noted that staff currently provides “facilitator” assistance for customers; stated that compliance with federal, state and local codes must be met; acknowledged procedures should be reviewed, and indicated that it is unknown whether separating the offices will work. Ms. Broyles, seconded by Mr. Cook, moved to amend by revising the wording in Section (3) under the Now, Therefore, Be It Resolved clause to read as follows: “The Development Office will employ and/or appoint an advocate for private citizens to assist with the City’s regulatory process in order to speed project approval; and ...”. Joe Gallagher expressed his belief that the Development office needs a facilitator, not an advocate. Comments followed in support as well as non-support of the proposed amendment. Discussion topics included: Lack of timeliness of development processes affecting contractors, developers and residents; micro-managing; concerns that have been expressed about application reviews and inspections resulting in additional requirements, and customer service. Motion to amend carried. Voting “yes” -- all members of the governing body with the exception of Mr. Brown voting “no.” Discussion continued on the main motion as twice amended and included references to previous comments; consistency and transparency; procedural challenges; facilitating community development; support for new development director staff position as an appointee; micro-managing, and governing body’s statutory authority to deal with departments and personnel. Main motion as twice amended carried. Voting “yes” -- Mr. Allen, Ms. Broyles, Mr. Cook, Mr. Luna, Mr. Shanor, Mr. Valdez, Ms. Williams and Mayor Kaysen. Voting “no” -- Mr. Brown and Dr. Rinne. (#5618)

Following a brief recess, Mayor Kaysen reconvened the meeting at 8:40 p.m.

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2015 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113 -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Del-Van Storage Park, being a replat of all of Goodwater Addition, Goodwater Drive, and Water Blue Lane and a portion of the Northeast Quarter of the Northwest Quarter of Section 26, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located south of and adjacent to Dell Range Boulevard, east of and adjacent to Van Buren Avenue) -- referred to Public Services Committee (sponsor -- Mr. Shanor).

[CA] Preliminary Plat for Thomas Heights, a replat of Lots 1, 2 and 3, Smithson View; Tracts 26, 27, a portion of Tracts 1 and 7, Dell Range Addition, Second Filing, Cheyenne, Wyoming (located between Ridge Road and College Drive, south of Summit Drive) -- referred to Public Services Committee.

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County, Wyoming, for juvenile probation services. Motion (per Consent Agenda) carried. (#6236)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County Community Partnership, Inc., for Suicide Prevention Program Services at Johnson and Carey Jr. High Schools in conjunction with the Wyoming Department of Education 21st Century Learning Centers ACCISS Program. Motion (per Consent Agenda) carried. (#6237)

[CA] Contract between the City of Cheyenne, Office of Youth Alternatives, and Wyoming Department of Family Services, regarding the provision of Youth Alternatives Prevention Program services. Motion (per Consent Agenda) carried. (#6238)

[CA] Agreement between the City of Cheyenne, Transit Division, and Wyoming Department of Transportation for Wyoming Rural Public Transit Program Fiscal Year 2015 (Wyoming Department of Transportation grant) -- referred to Finance Committee.

[CA] Right-of-Way Encroachment Agreement between the City of Cheyenne and WILLCO IX Development, LLLP, to construct a loading and unloading lane and island on Pioneer Avenue in front of the future Hilton Garden Inn -- referred to Finance Committee.

[CA] Project Development and Administration Agreement between the City of Cheyenne and the Children's Museum of Cheyenne, for development of a Children's Museum -- referred to Finance Committee.

[CA] Contract Modification No. 3 to Contract No. 6115 between the City of Cheyenne and FCI Constructors of Wyoming, LLC, establishing the Guaranteed Maximum Price (GMP) for the Cheyenne Public Safety Center Project (1% Specific Purpose Sales & Use Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-7-15 for furnishing four new vehicles for the City of Cheyenne, Parks and Recreation Department (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bids from Halladay Motors, Cheyenne, for: 2015 GMC 15-passenger van in the amount of \$26,867.00, 2015 GMC 3/4 ton truck with snow plow in the amount of \$35,798.00, 2015 GMC 3/4 ton truck in the amount of \$28,442.00; and from Spradley Barr Motors, Cheyenne, for: 2015 Ford F150 in the amount of \$25,495.00; grand total bid amount \$116,602.00).

[CA] Consideration of Bid #M-3-15 for a contract between the City of Cheyenne, 1% Construction Division, and CBJ Asphalt and Concrete Contractors, LLC, Phoenix, Arizona, for Fiscal Year 2015 Crack Seal project (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid in the amount of \$185,500.00). (#6239)

[CA] Authorization of single source quote from Dant Clayton Corporation, Parker, Colorado, for purchase of bleachers at Powers Baseball Field, Parks and Recreation Department (Special Distribution funds) -- referred to Finance Committee.

[CA] Authorization of single source quote from AquaClimb/Pyramide USA, Inc., Frederick, Maryland, for a purchase agreement to acquire a Glacier Climb Wall, Parks and Recreation Department, Cheyenne Aquatic Center (Recreation Program funds) -- referred to Finance Committee.

Application requesting the establishment of a Residential Critical Traffic and Parking Area in the vicinity of the Cheyenne Regional Medical Center. Mr. Shanor moved to approve, seconded by Mr. Luna. Mr. Shanor moved to postpone for two weeks (to Sept. 22, 2014). Motion to postpone died due to the lack of a second to the motion. Comments followed in support of the application to offer the neighborhood relief from parking congestion conditions. Main motion carried. Voting "yes" -- all members of the governing body.

Request to approve change of location of additional dispensing room for City of Cheyenne resort liquor licensee, The Plains Hotel Co., LLC d/b/a The Plains Hotel, located at 1600 Central Avenue, Cheyenne, Wyoming -- referred to Finance Committee.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:42 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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